

CLOUD HOSTING AND MANAGED SERVICES AGREEMENT

Contract No: CLM-2026-003

Effective Date: **April 1, 2026**

Emerald Bay Technologies (Pvt) Ltd, No. 22, Flower Road, Colombo 07 ("Customer"),
AND
CloudSphere Lanka (Pvt) Ltd, No. 55, Nawam Mawatha, Colombo 02 ("Provider").

1. SERVICES

Provider shall deliver the following cloud hosting services: (a) Dedicated virtual private cloud environment with 64 vCPUs, 256 GB RAM, and 10 TB SSD storage, (b) Managed Kubernetes cluster with auto-scaling capabilities, (c) Content Delivery Network (CDN) with 15 global edge locations, (d) Managed PostgreSQL and Redis database services, (e) DDoS protection and Web Application Firewall (WAF), (f) Automated daily backups with 30-day retention and geo-redundant storage, and (g) 24/7 infrastructure monitoring with real-time alerting.

2. UPTIME GUARANTEE

Provider guarantees **99.95% monthly uptime** for all production services. Uptime is calculated as: $(\text{Total minutes in month} - \text{Downtime minutes}) / \text{Total minutes in month} \times 100$. Scheduled maintenance windows (maximum 4 hours/month, between 2:00 AM - 6:00 AM IST) are excluded from uptime calculations. Unscheduled downtime exceeding the SLA will result in service credits as defined in Section 5.

3. CONTRACT TERM AND VALUE

Term: **36 months** (April 1, 2026 - March 31, 2029). Monthly fee: **USD 4,800**. Total contract value: **USD 172,800**. Payment terms: Net 15 days from invoice date. Annual price escalation capped at 5%. Early termination fee: Remaining months at 50% of monthly rate.

4. DATA SOVEREIGNTY

All primary data shall be stored within data centers located in Singapore and India. No Customer data shall be transferred to, processed in, or accessible from data centers outside the Asia-Pacific region without prior written consent. Provider shall maintain SOC 2 Type II and ISO 27001 certifications for all data centers used.

5. SERVICE CREDITS

Monthly Uptime %	Service Credit
99.0% - 99.95%	10% of monthly fee
95.0% - 98.99%	25% of monthly fee
90.0% - 94.99%	50% of monthly fee
Below 90.0%	100% of monthly fee + right to terminate

6. DISASTER RECOVERY

Provider shall maintain a disaster recovery site with Recovery Point Objective (RPO) of 1 hour and Recovery Time Objective (RTO) of 4 hours. DR failover testing shall be conducted quarterly with Customer participation. Provider shall provide detailed DR test reports within 5 business days of each test.

Emerald Bay Technologies (Pvt) Ltd

Amaya Dissanayake, VP Engineering
Date: March 28, 2026

CloudSphere Lanka (Pvt) Ltd

Lakshan de Silva, CEO
Date: March 28, 2026